

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #12	CCRB Case #: 201603740	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/27/2016 7:00 PM, Friday, 04/29/2016 12:00 AM	Location of Incident: 42-35 Main Street and inside the 109th Precinct stationhouse	18 Mo. SOL 10/27/2017	Precinct: 109		
Date/Time CV Reported Mon, 05/02/2016 12:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/02/2016 12:23 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Taejoong Kim	08775	951873	109 PCT
2. SGT Angel Cordero	02202	944257	109 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Taejoong Kim	Abuse: On April 27, 2016, at 42-35 Main Street in Queens, Police Officer Taejoong Kim stopped § 87(2)(b)	A . Substantiated
B . POM Taejoong Kim	Abuse: On April 27, 2016, at 42-35 Main Street in Queens, Police Officer Taejoong Kim threatened to arrest § 87(2)(b)	B . Substantiated
C . POM Taejoong Kim	Abuse: On April 27, 2016, at 42-35 Main Street in Queens, Police Officer Taejoong Kim searched § 87(2)(b)'s cell phone.	C . Substantiated
D . POM Taejoong Kim	Abuse: On April 27, 2016, at 42-35 Main Street in Queens, Police Officer Taejoong Kim deleted information on § 87(2)(b)'s electronic device.	D . Substantiated
E . POM Taejoong Kim	Abuse: On April 27, 2016, at 42-35 Main Street in Queens, Police officer Taejoong Kim threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
F . SGT Angel Cordero	Abuse: On April 29, 2016, inside the 109th Precinct stationhouse, Sergeant Angel Cordero did not process § 87(2)(b)'s complaint regarding an officer.	F . Unsubstantiated

Case Summary

On May 2, 2016, § 87(2)(b) filed this complaint with the CCRB via telephone.

On April 27, 2016, approximately 6:30 p.m., § 87(2)(b) was seated in Tous Les Jour drinking a coffee. After noticing Police Officer Taejoong Kim, Police Officer John Ko, Police Officer George Braun, and Sgt. Yaudy Fernandez enter the café, § 87(2)(b) asked the manager of the café why the officers were there. When the manager explained to § 87(2)(b) that an uninvolved individual, § 87(2)(b), stole from the café, § 87(2)(b) approached the interaction between the officers and § 87(2)(b) to take pictures with his cell phone.

Minutes later PO Kim approached § 87(2)(b) who was standing approximately 10 feet away from the interaction. PO Kim asked § 87(2)(b) if he took photos of the interaction, to which § 87(2)(b) said yes. PO Kim then told § 87(2)(b) that he cannot take photos of the interaction because § 87(2)(b) was a minor, and he had to delete the photos that he took. After § 87(2)(b) decided against deleting the photos, PO Kim said, "If you do not delete them, I will arrest you" (**Allegation A**).

PO Kim then took § 87(2)(b)'s cell phone from his hand (**Allegation B**), navigated through § 87(2)(b)'s photos (**Allegation C**), and deleted the photos taken of the interaction (**Allegation D**) from § 87(2)(b)'s cell phone. § 87(2)(b) attempted to walk away from PO Kim, but PO Kim asked § 87(2)(b) for a form of identification (**Continuation of Allegation B**). After § 87(2)(b) told PO Kim that he did not have identification with him, PO Kim requested § 87(2)(b)'s phone number, date of birth, and address. § 87(2)(b) provided his date of birth and address. PO Kim responded by telling § 87(2)(b) that if he did not provide his phone number, PO Kim would shoot § 87(2)(b) (**Allegation E**). § 87(2)(b) provided his phone number then walked away from PO Kim.

On April 29, 2016, between the hours of 11:00 a.m. and 12:00 p.m., § 87(2)(b) went to the 109th Precinct stationhouse to file a complaint against PO Kim. § 87(2)(b) spoke to Sgt. Angel Cordero who was seated at the desk. § 87(2)(b) told Sgt. Cordero that he wanted to file a complaint, but Sgt. Cordero told him that he is better off calling 311 to file a complaint because filing a complaint at the stationhouse would not be effective since "officers tend to help other officers" (**Allegation F**).

Video surveillance footage of the interaction between § 87(2)(b) and PO Kim was obtained from Tous Les Jour (Board Review 01).

No arrests were made or summonses were issued as a result of the incident under investigation.



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Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of July 12, 2016, the Notice of Claim Inquiry with the NYC Comptroller's Office is still pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) (Board Review 03). § 87(2)(b)
- This is the second CCRB complaint filed against PO Kim, who has a total of five allegations in his CCRB history and who has been a Member of Service for four years.

§ 87(2)(g)

- This is the fourth CCRB complaint filed against Sgt. Cordero, who has a total of seven allegations in his CCRB history and who has been a Member of Service for eight years.

§ 87(2)(g)

Findings and Recommendations

Allegation A – Abuse: On April 27, 2016, at 42-35 Main Street in Queens, Police Officer Taejoong Kim threatened to arrest § 87(2)(b)

It is undisputed that during the incident under investigation, PO Taejoong Kim and § 87(2)(b) discussed the legality of § 87(2)(b)'s actions within the context of him possibly being arrested. It is also undisputed that the reason PO Kim approached § 87(2)(b) was because § 87(2)(b) took photos of a minor's arrest § 87(2)(b). It is also undisputed that § 87(2)(b) did not commit any arrestable offenses while at 42-35 Main Street in Queens on April 27, 2016. Furthermore, it is undisputed that PO Kim asked § 87(2)(b) for his telephone number in order to "reach" § 87(2)(b) if he later confirmed that § 87(2)(b) engaged in unlawful surveillance and/or was questioned by a superior about why a photo of the minor was taken at the incident scene.

During § 87(2)(b)'s CCRB statement (Board Review 04), he alleged that PO Kim told him he would be arrested if he did not comply after he initially refused to delete the photos, when PO Kim asked him if he sent the photos to a third party, and when PO Kim requested his pedigree information. As a result of the alleged threat, § 87(2)(b) complied with PO Kim's commands.

During PO Kim's CCRB statement (Board review 05), he stated that he felt "uncomfortable" with § 87(2)(b) taking photos of § 87(2)(b) because § 87(2)(b) was a minor. PO Kim confirmed that he requested § 87(2)(b) delete the photos. After making the request, PO Kim said, "I am not sure, but you might be charged with unlawful surveillance if you are taking pictures of a minor." PO Kim also told § 87(2)(b) that if he was in fact conducting an unlawful surveillance, he could be arrested. At a later point, PO Kim did request § 87(2)(b)'s phone number because he wanted to be able to "reach" § 87(2)(b) if he was questioned by a supervisor at a later time. After researching the NY Penal Law regarding "unlawful surveillance" at a later time, PO Kim learned that § 87(2)(b) was not conducting an unlawful surveillance.

NY Penal Laws 250.45 and **250.50** (Board review 06), unlawful surveillance in the second degree and unlawful surveillance in the first degree respectively, do not include the photography of a minor in a public setting as an unlawful surveillance.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Abuse: On April 27, 2016, at 42-35 Main Street in Queens, Police Officer Taejoong Kim stopped § 87(2)(b)

Allegation C – Abuse: On April 27, 2016, at 42-35 Main Street in Queens, Police Officer Taejoong Kim searched § 87(2)(b) s cell phone.

Allegation D – Abuse: On April 27, 2016, at 42-35 Main Street in Queens, Police Officer Taejoong Kim deleted information on § 87(2)(b) s electronic device.

It is undisputed that PO Kim had possession of § 87(2)(b) s cellphone and that he navigated through contents of the cell phone. Additionally it is undisputed that items were deleted from his cellphone. It is also undisputed that § 87(2)(b) was not in violation of any laws at any point during his interaction with PO Kim.

§ 87(2)(b) alleged that after he refused to delete the photos of the minor, PO Kim grabbed the cell phone out of his hand and deleted the photos himself. PO Kim went through § 87(2)(b) s private photos, including one of § 87(2)(b) s girlfriend, without asking for or being granted permission to do so. After PO Kim returned his phone, § 87(2)(b) attempted to walk away from PO Kim. PO Kim then requested his identification and then requested his date of birth, address, and phone number. § 87(2)(b) ultimately provided the information to PO Kim, after which he was allowed to leave the interaction.

Video surveillance footage (Board Review 07) of the incident that was obtained by the investigation depicts PO Kim take the cell phone from § 87(2)(b) PO Kim has his left hand placed underneath the cell phone, and his right hand on the top surface of the cell phone. PO Kim returns the cell phone to § 87(2)(b) PO Kim takes the cell phone from § 87(2)(b) s hands once again. Again, he places his left hand under the cell phone and his right hand on the top surface of the cell phone, holding the phone for 45 seconds while moving his right hand over the top of the cell phone.

PO Kim walks across the room at. At that point § 87(2)(b) begins to walk away from PO Kim, but PO Kim follows him and places his hand on § 87(2)(b) s arm. As a reaction, § 87(2)(b) turns around to face PO Kim. PO Kim and § 87(2)(b) stay facing each other for a number of minutes, when § 87(2)(b) walks away and out of the frame of the footage.

PO Kim stated that when he asked § 87(2)(b) to delete the photos taken of § 87(2)(b) § 87(2)(b) § 87(2)(b) complied. After § 87(2)(b) deleted the photos, PO Kim asked § 87(2)(b) if he could look through the cell phone to ensure that § 87(2)(b) deleted the photos. § 87(2)(b) verbally gave PO Kim permission to do so, so he and § 87(2)(b) “looked through the phone together.” He described that action as each party having a hand on the phone, while he navigated through § 87(2)(b) s photos. PO Kim was shown the aforementioned surveillance footage clip. PO Kim acknowledged that the aforementioned moments in the video footage were the instances he was speaking of when he said that he and § 87(2)(b) “looked through the phone together.”

PO Kim also confirmed that he did ask § 87(2)(b) for his telephone number, but not for his address or date of birth. PO Kim stated that § 87(2)(b) was free to leave at any point during their interaction, because he was not conducting a stop. When asked, PO Kim stated that he did not physically prevent § 87(2)(b) from walking away. Upon being presented the video surveillance footage, PO Kim acknowledged that he made physical contact with § 87(2)(b) s arm, who then immediately stopped walking away and turned to face PO Kim.

§ 87(2)(g)

Riley v. California (Board Review 08) Police are generally not allowed, without warrant, to search digital information on a cell phone seized from individual who had been arrested.

People v. DeBour (Board Review 09) Officers are permitted to stop an individual when they have reasonable suspicion of criminality.

People v. Caldwell (Board Review 11) An officer is permitted to search an individual's property if they have consent that is freely and voluntarily provided.

§ 87(2)(g)

It is therefore recommended that **Allegations B and C be substantiated.**

Allegation E - On April 27, 2016, at 42-35 Main Street in Queens, Police officer Taejoong Kim threatened § 87(2)(b) with the use of force.

It is undisputed that PO Kim requested § 87(2)(b)'s telephone number inside of Tous Les Jour.

During his CCRB statement, § 87(2)(b) alleged that PO Kim said that PO Kim would shoot § 87(2)(b) if he left the café without providing his cell phone number.

PO Kim stated that he did not tell § 87(2)(b) that he would shoot or use any type of physical force if § 87(2)(b) did not provide his cell phone number.

§ 87(2)(g)

It is therefore recommended that **Allegation D be unsubstantiated**

Allegation F - On April 29, 2016, inside the 109th Precinct stationhouse, Sergeant Angel Cordero did not process § 87(2)(b) s complaint regarding an officer.

It is undisputed that § 87(2)(b) spoke to Sgt. Cordero at the 109th Precinct stationhouse.

§ 87(2)(b) stated that when he arrived at the 109th Precinct stationhouse on April 29, 2016, he spoke to the Telephone Switch Board Operator, PO Noorullah Mashriqi. PO Mashriqi then directed § 87(2)(b) to Sgt. Cordero. § 87(2)(b) told Sgt. Cordero about the incident at the café, and expressed that he wanted to file a complaint against the officer. In response Sgt. Cordero told § 87(2)(b) that he would be better off calling 311 because “officers tend to help other officers.”

During his CCRB Statement (Board Review 10), Sgt. Cordero stated that he saw § 87(2)(b) enter the stationhouse and begin speaking to PO Mashriqi. After PO Mashriqi informed Sgt. Cordero of the situation, Sgt. Cordero spoke to § 87(2)(b). Sgt. Cordero directed § 87(2)(b) to a sign on the wall that listed the ways a civilian can file a complaint against an NYPD officer. Additionally, Sgt. Cordero offered § 87(2)(b) the opportunity to file a complaint at the stationhouse, but § 87(2)(b) “seemed content with taking the telephone number from the sign” to call on his own. § 87(2)(b) did not tell Sgt. Cordero that he wanted to file a complaint at the stationhouse.

§ 87(2)(g)

It is therefore recommended that **Allegation E be unsubstantiated**

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date